

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SANTA FE DISCOUNT CRUISE PARKING, INC., D/B/A EZ
CRUISE PARKING; LIGHTHOUSE PARKING INC; AND SYLVIA
ROBLEDO D/B/A 81ST DOLPHIN PARKING, *Complainants*

DOCKET NO. 14-06

v.

THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES;
AND THE GALVESTON PORT FACILITIES CORPORATION,
Respondents.

Served: April 20, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER REQUIRING JOINT STATUS REPORT

On April 16, 2021, the Commission issued an Order on Initial Decision on Remand (“Commission Remand Order”) reversing the Initial Decision on Remand in part, finding that Respondent The Board of Trustees of the Galveston Wharves violated 46 U.S.C. § 41106(2) with respect to Complainants EZ Cruise and 81st Dolphin, and remanding for further proceedings on reparations for the § 41106(2) violations. Commission Remand Order at 40.

The Commission remanded only a narrow issue of reparations, stating:

The Commission therefore remands this case to the ALJ to consider an appropriate reparations award for the period of June 16, 2011, to July 31, 2014 for EZ Cruise and 81st Dolphin. The record has data on EZ Cruise and 81st Dolphin access fee payments for all months except July 2014. *See* Complainants’ App. at 45-56 (Galveston Wharves Historical Detailed Trial Balance, Access Fees); *id.* at 110-140, 234-271. On remand, EZ Cruise and 81st Dolphin would have the opportunity to prove the amount of access fees they paid that month. The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

Commission Remand Order at 39-40.

The remaining parties are hereby required to confer by May 17, 2021, to discuss whether additional discovery will be required and to propose a schedule for resolving this issue. They should then file a joint status report by May 24, 2021.

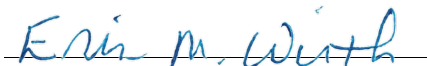
If the parties assert that additional discovery is necessary to resolve the reparations at issue, then they should indicate in their joint status report the specific discovery request they propose and a statement of how the discovery would relate to the narrow issue remanded. The only additional discovery permitted will be that approved by the undersigned.

The parties should agree on a proposed schedule for any additional discovery requested, Complainants' reparations brief, Respondent's reparations opposition brief, and Complainants' reparations reply brief. The proposed schedule should be included in the joint status report. Only discovery and briefing on the limited reparations issue remanded will be permitted.

The parties are required to discuss whether settlement of this proceeding is possible to avoid the time and expense involved in litigating the reparations issue. The parties should state in the joint status report whether they have discussed settlement, but they should *not* provide their positions on settlement. If the parties are able to resolve this proceeding, they must submit a motion for approval of the settlement with a copy of the settlement agreement.

As a reminder, filings should be sent to the Office of the Secretary at secretary@fmc.gov with a courtesy copy sent to judges@fmc.gov with opposing parties copied. Due to challenges associated with COVID-19, the Commission is temporarily waiving certain requirements in 46 C.F.R. part 502 related to the paper filing of documents, ink signatures, and service by mail of complaints. Docket No. 20-07, Order (May 12, 2020), www2.fmc.gov/readingroom/docs/20-07/20-07_order.pdf; *see also* Temporary Adjustments in FMC Operations (Mar. 19, 2020), www.fmc.gov/temporary-adjustments-in-fmc-operations.

For the reasons set forth above, Complainants EZ Cruise and 81st Dolphin and Respondent The Board of Trustees of the Galveston Wharves are hereby **ORDERED** to confer by May 17, 2021, and to file a joint status report with proposed schedule as outlined above on or before May 24, 2021.


Erin M. Wirth
Chief Administrative Law Judge